

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Josephine Ogboye	Team: Team # 2	CCRB Case #: 200908504	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 06/01/2009 7:41 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/1/2010	Precinct: 46
Date/Time CV Reported Tue, 06/02/2009 12:45 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 06/02/2009 10:28 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Catherin Thomas	23675	946318	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Thomas Perez	29432	946109	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Catherin Thomas	Discourtesy: Officer Catherine Thomas spoke obscenely and/or rudely to § 87(2)(b)	A . Unsubstantiated

Synopsis

§ 87(2)(b) filed this complaint on June 2, 2009. On June 1, 2009, at approximately 7:41PM, two officers, who were identified by § 87(2)(b) as Officer Thomas Perez and Officer Catherine Thomas, approached § 87(2)(b)'s vehicle. § 87(2)(b) was parked in front of § 87(2)(b) in the Bronx, and was issued a summons for loud music. While the officers were writing the summons, § 87(2)(b)'s sister, § 87(2)(b) interfered and used profanity towards Officer Thomas, referring to her as a “fucking bitch.” In response, Officer Thomas allegedly muttered, “her mother is a fucking bitch,” directing this towards § 87(2)(b) (**allegation A**). § 87(2)(b) was eventually issued the summons, and because § 87(2)(b) failed to comply with the officers instructions to disperse and to provide her ID, she was subsequently arrested § 87(2)(b).

§ 87(2)(g) Therefore, **it is recommended that allegation A be “Unsubstantiated.”**

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b) Hispanic male with brown hair and green eyes. He made statements initiating this complaint and in his CCRB interview on June 16, 2009 (encl. 4a-f). § 87(2)(b)

On June 1, 2009, at approximately 7:41PM, in the vicinity of § 87(2)(b) in the Bronx, while § 87(2)(b) was changing his vehicle's headlight, two uniformed foot patrol officers, identified by § 87(2)(b) as Officer Catherine Thomas and Officer Thomas Perez, approached him. § 87(2)(b)'s car radio was turned on and he explained that after he went to remove a tool from his trunk, he left his car door open for a moment, and it was at this point that the officers approached him. He believed he was approached because of the sound from his vehicle. Officer Perez was described as a 5' 7" to 5' 9" tall, 160-pound Hispanic male, while Officer Thomas was described as a 5' 7" tall, 150-pound Hispanic female with black hair. Both officers requested § 87(2)(b)'s ID, and he asked them why they wanted his ID, but they did not provide an answer. § 87(2)(b) obliged and provided his ID to them. He remained calm and watched the officers as they made several attempts to run a check on his ID over the radio. The officers seemed to be having problems conducting the radio run, and approximately twenty minutes later (as they continued attempting to run his ID), § 87(2)(b)'s sister, § 87(2)(b) came to the scene. She was upset about the officers' presence and began to make comments to the effect that the officers are trying to get their money and that is how they get paid. Officer Thomas instructed § 87(2)(b) to step away to the sidewalk and § 87(2)(b) who did not initially comply but continued to express her resentment for the officers' presence (stating that she had a freedom of speech), did so after she was instructed the second time.

As § 87(2)(b) walked to the side, Officer Thomas followed her and requested her ID. § 87(2)(b) responded by saying something to the effect of, “I don't have to give you shit, you fucking bitch. I'll give it to him [Officer Perez] before you.” (This was the only time § 87(2)(b) used profanity against the officers). § 87(2)(b) then walked up to Officer Perez and handed him her ID. Officer Thomas then told § 87(2)(b) that if § 87(2)(b) apologized, she would not lock her up, and if otherwise she would lock her up. § 87(2)(b) responded that § 87(2)(b) was “a little crazy” and that he would try to talk to § 87(2)(b). He then walked towards § 87(2)(b) who was positioned by the wall and approximately twenty-five-feet from where the officers were positioned, and tried to talk to her, but she refused to be pacified or to apologize. § 87(2)(b) then walked back to the officers and told them that she was not willing to apologize. Officer Perez then handed Officer Thomas § 87(2)(b)'s ID, while Officer Perez remained with § 87(2)(b)'s ID. § 87(2)(b) was positioned against his car and Officer Perez was positioned approximately five-feet away from him on his left side, while Officer Thomas was positioned approximately two-feet from him on his right side after she obtained § 87(2)(b)'s ID. Officer Thomas then muttered, “Her mother is a bitch.” § 87(2)(b) heard this and informed Officer Thomas that he and § 87(2)(b) share the same mother. Officer Thomas appeared to have been taken aback from this

realization, but she did not respond verbally or acknowledge § 87(2)(b) who questioned her comment and told her that she should have been more respectful.

Shortly afterwards, approximately four patrol cars arrived at the scene with an unspecified amount of uniformed officers and § 87(2)(b) was arrested and taken to the stationhouse. § 87(2)(b) was also issued a summons, #§ 87(2)(b), by Officer Thomas § 87(2)(b). He explained that he was not upset about the summons he received despite the fact that he tried to convince the officers not to issue him a summons but give a warning instead, explaining his financial situation to them and the fact that he had a child to feed. He noted that Officer Thomas seemed understanding initially and stated, “It’s your call” to Officer Perez, but Officer Thomas got disrespectful after § 87(2)(b) arrived on the scene and provoked her. § 87(2)(b) was upset that his sister was arrested for the comment she made and for refusing to apologize while Officer Thomas made a similar comment without acknowledging her wrongdoing and also refusing to apologize. He believed that both § 87(2)(b) and Officer Thomas were both wrong, but he also believed that Officer Thomas could have issued a summons to § 87(2)(b) instead of putting her through the system as she did.

Results of Investigation

Civilians Not Interviewed

§ 87(2)(g)

Identification of Officers Interviewed

§ 87(2)(b) obtained Officer Thomas’s and Officer Perez’s names from their uniform during the interaction and he provided the information when he filed this complaint.

Officers Interviewed

Officer Catherine Thomas from the 46th Precinct was interviewed on July 1, 2009 (encl. 6a-h). On June 1, 2009, Officer Thomas was assigned to Post 7 to 9 and she worked with Officer Thomas Perez. They were both in uniform and on foot patrol. In her memo book, Officer Thomas noted that at 8:19PM, § 87(2)(b) was under arrest § 87(2)(b).

On June 1, 2009, at approximately 7:41PM, Officer Perez was issuing a summons for loud music to § 87(2)(b) in front of § 87(2)(b) in the Bronx, when § 87(2)(b) approached both officers and began to curse at them. Officer Perez was primarily dealing with § 87(2)(b) while Officer Thomas stood to the side before § 87(2)(b) approached them. § 87(2)(b)’s vehicle was parked and he was sitting in the car and had a door open. Officer Thomas also believed that his windows might have been rolled down. § 87(2)(b)’s music was so loud that it could be heard from a block ahead.

When § 87(2)(b) approached (approximately two to three minutes into their interaction with § 87(2)(b)) she made several comments to the effect that the officers were giving out summonses to make money out of it and that they made money from every summons they issued. § 87(2)(b) was positioned a few feet from Officer Perez as she made these comments, and Officer Thomas politely asked her to step away from Officer Perez. § 87(2)(b) refused to comply and stated, “Fuck that, you fucking bitch. I don’t have to do nothing; that’s my fucking brother.” Officer Thomas again asked her to step away from Officer Perez, but § 87(2)(b) continued to refuse, so Officer Thomas called for back up officers. Officer Thomas instructed § 87(2)(b) approximately three times to step away, and requested her ID at this point when § 87(2)(b) continued to refuse. § 87(2)(b) ignored the request and continued being loud, so one of § 87(2)(b)’s friends grabbed her and pulled her to the front of the building, which was only a few feet away, telling her to calm down.

There were some people in front of the building who were also telling § 87(2)(b) that the officers do not get paid for summonses and were also trying to calm her down, but § 87(2)(b) remained in front of the building and continued to state that she did not have to move because the officers were dealing with her brother. There were approximately fifteen to twenty people gathered as a result of § 87(2)(b).

§ 87(2)(b)'s loudness, which caused the officers to decide to take her to the stationhouse. Officer Thomas then approached § 87(2)(b) in front of the building and instructed § 87(2)(b) to go inside the building because she was blocking the entrance and continued to draw a crowd. § 87(2)(b) ignored the instruction and Officer Thomas then again requested her ID. § 87(2)(b) refused to provide the ID and she was subsequently arrested.

Officer Thomas noted that § 87(2)(b) never handed her ID to her while in front of the building and she did not know if § 87(2)(b) handed it to Officer Perez because she did not observe the ID at the scene. The first time she saw § 87(2)(b)'s ID was after they arrived at the stationhouse. Officer Thomas explained that she requested § 87(2)(b)'s ID because she was going to issue her a summons for failure to disperse. However, § 87(2)(b) was arrested because she refused to comply with the instructions to disperse and to provide her ID. Officer Thomas noted that if § 87(2)(b) had provided her ID, she would have only been issued a summons in lieu of an arrest.

Officer Thomas did not state to § 87(2)(b) that her mother is a "bitch" at any point during the encounter. She described § 87(2)(b)'s demeanor as calm while they in the street, and she also noted that when they arrived at the stationhouse, § 87(2)(b) was apologetic about his sister's behavior. Before the officers left for the stationhouse, § 87(2)(b) did not at any point question Officer Thomas for using profanity while speaking with § 87(2)(b). Officer Thomas maintained that she never used profanity at any point during the interaction. While at the stationhouse, § 87(2)(b) did not accuse Officer Thomas of using profanity towards § 87(2)(b) and Officer Thomas was never aware that § 87(2)(b) filed a complaint against her.

Officer Thomas Perez from the 46th Precinct was interviewed at the CCRB on June 30, 2009 (encl. 5a-e). Due a malfunction in the recording device, part of Officer Perez's statement was not recorded. On June 1, 2009, Officer Perez worked from 5:30PM to 2:05AM on June 2, 2009. He was assigned to post 35 to 44, and he worked with Officer Catherine Thomas. They were both in uniform and on foot patrol. In his memo book, Officer Perez noted that at 7:41PM, he had one male stopped and at 7: 55PM, a summons was issued for unreasonable noise.

On June 1, 2009, at approximately 7:41PM, in the vicinity of § 87(2)(b) in the Bronx, Officer Perez stopped to issue a summons to § 87(2)(b) § 87(2)(b) § 87(2)(b)'s vehicle was parked and § 87(2)(b) appeared to be working on the vehicle with his music playing loudly. The driver's side door was opened and Officer Perez was walking southbound on § 87(2)(b) when he observed § 87(2)(b)'s vehicle (heard the loud music) parked on the side of the street.

While Officer Perez was issuing the summons (approximately two to three minutes of approaching § 87(2)(b)), § 87(2)(b)'s sister, § 87(2)(b) came to the scene and started making offensive comments and arousing the crowd. She also made an offensive comment towards Officer Thomas, directing it towards her mother. In response, Officer Thomas decided to issue § 87(2)(b) a summons for cursing and being loud and requested her ID. § 87(2)(b) was issued a summons for § 87(2)(b) as well as arrested.

Officer Lopez noted that he did not at any point hear Officer Thomas use any form of profanity towards § 87(2)(b). § 87(2)(b) was arrested § 87(2)(b) and transported to the stationhouse

Communication Documents

Sprint § 87(2)(b) notes that at 7:39PM at § 87(2)(b) in the Bronx, a warrant search was run with no hits. At 8:19PM, one person was under arrest at the same location (encl. 7a).

Police Documents

The tour 3 Roll Call for the 46th Precinct notes that Officer Thomas and Officer Perez were assigned to post 7 to 9 (encl. 9a).

The Arrest Report, which notes Officer Thomas as the arresting officer, notes that § 87(2)(b) was arrested for using obscene language toward officers and causing public alarm, while interfering with Officer Perez's issuing a summons. She also failed to comply with a lawful order to

disperse. She was asked for ID and also refused. “She created a hazardous physically offensive condition which served no legitimate purpose” (encl. 6e-f).

The Command Log indicates § 87(2)(b) s arrest time as 7:45PM and notes that she was transferred to Bronx Central Booking at 1:15AM on June 2, 2009 (encl. 8a).

Notice of Claim

On August 24, 2009, § 87(2)(b) of the NYC Office of the Comptroller confirmed that a notice of claim was not filed regarding this incident (encl. 12d).

Subject Officer History

Officer Catherine Thomas has been with the NYPD for one year and she has not been the subject of any substantiated CCRB allegations (encl. 1a).

Complainant CCRB History

This is the first complaint that § 87(2)(b) has filed with the CCRB (encl. 2a).

Complainant Criminal Conviction History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Conclusions and Recommendations

Subject Officer Identification

§ 87(2)(b) identified Officer Thomas by name after obtaining her name from her uniform and alleged that she was discourteous towards his sister. Officer Thomas acknowledged encountering § 87(2)(b) on the stated date and time of the incident. § 87(2)(g)

Undisputed Facts

There are no undisputed facts in this case.

Disputed Facts

§ 87(2)(b)

Assessment of the Evidence

§ 87(2)(b) explained that while the officers were issuing him a summons, § 87(2)(b) walked up to them making several provoking statements, as well as referring to Officer Thomas as a “fucking bitch.” Officer Thomas requested § 87(2)(b) s ID but she refused to hand it to Officer Thomas and gave it to Officer Perez instead. After Officer Perez handed § 87(2)(b) s ID to Officer Perez, Officer Thomas then allegedly muttered, “Her mother is a bitch.” § 87(2)(b) noted that § 87(2)(b) was positioned in front of the building approximately twenty-five feet away from where § 87(2)(b) was positioned with the officers when this occurred. He noted that because Officer Thomas muttered this statement, § 87(2)(b) did not actually hear her, and he was unsure if Officer Perez heard her either.

§ 87(2)(g)

§ 87(2)(b) Officer Perez maintained that he did not hear Officer

Thomas use any form of profanity towards § 87(2)(b) Also, Officer Thomas, who confirmed that § 87(2)(b) referred to her as a “fucking bitch”, denied using any form of profanity towards § 87(2)(b) § 87(2)(g)

Allegation A: Officer Catherine Thomas spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(g)
Therefore, it is recommended that allegation A be “Unsubstantiated.”

Investigator: Josephine Ogboye

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: